

		\$102,000.00, which the court finds fair, adequate and reasonable for the settlement of this size. Plaintiff must file an amended [Proposed] Order and Judgment in accordance with this ruling, and with the new PAGA Period. (Mondragon Dec. ¶ 4 [indicating the parties have agreed to a shortened PAGA Period].) Plaintiff is ordered to give notice of the ruling to the LWDA and Defendant.
4	30-2024-01416987 Portillo vs. Fujifilm Irvine Scientific, Inc.	The tentative ruling is to continue Plaintiffs Concepcion Portillo and Yasmine Villa's (collectively, "Plaintiffs") Motion for Preliminary Approval of Class Action and PAGA Settlement to December 21, 2026 at 1:30 p.m. Counsel must file supplemental papers addressing the court's concerns (not fully revised papers that would have to be reread) no later than two weeks before the next hearing date. Counsel must submit an amendment to the settlement agreement rather than any amended settlement agreement. Counsel also must provide a red-lined version of any revised papers. Counsel also should provide the court with an explanation of how the pending issues were resolved, with references to any corrections to the settlement agreement and the class notice, rather than with a supplemental declaration or brief that simply asserts the issues have been resolved. The Class and PAGA Periods are defined as ending on the date the Court enters an order preliminarily approving the settlement. However, the escalator clause in Paragraph 4(F) of the settlement agreement provides for the option to either increase the settlement amount or change the Class and PAGA Periods such that some of the class members and aggrieved employees might no longer be included in the settlement. This court, however, will not approve a settlement that results in class members and aggrieved employees being told they are in the settlement but later being told they are not included in the settlement. Thus, defendant will have to either rely on or take another look at its estimated number of class members and aggrieved employees or select the increased payment option. If the parties want to preserve the option calling for a reduction of the Class and PAGA Periods, rather than just an increase in the settlement amount, they must determine if the escalator clause applies before sending out the class notice, have

		the class notice include the adjusted end date, and not be sent to non-participants. The court is inclined to grant approval of an attorneys' fees request of 30% of the gross settlement amount, which the court finds fair, adequate and reasonable for the settlement of this size. The parties may either reduce the attorneys' fees request by amendment to the settlement agreement and the class notice, or Plaintiffs must provide documentation and support for any request higher than this percentage at the final approval stage. The allocation of only 25% of the settlement payments for wages appears to be low. Either an increase to 33 1/3% or an explanation of why the figure is not at least 33 1/3% is required. The court will not approve a direct release of claims by the LWDA. Thus Paragraph 3(F) of the settlement agreement must be amended to state: "Upon the Effective Date of the Releases, all Settlement Class Members shall be deemed to have, and by operation of Judgment shall have, released, waived and relinquished the Released Class Claims, and Plaintiffs, on behalf of themselves and the LWDA, and all PAGA Employees shall be deemed to have, and by operation of the Judgment shall have, released, waived and relinquished the PAGA Released Claim." (Settlement ¶ 3(F).) The following corrections must be made to the class notice: • The end of the first paragraph on page 2 of the class notice should be corrected to remove the "(2)" as there is no (1): ". . . Plaintiffs also seek civil penalties under the California Private Attorneys General Act ("PAGA") for all individuals classified as non-exempt employees ("Aggrieved Employees") who were employed by Defendant in California during the period of time starting on August 6, 2023 and ending on [insert date of preliminary approval] ("PAGA Period")." • Section (3)(2) on page 3 of the class notice should be captioned "Deductions from Gross Settlement Subject to Final Approval by the Court," not "Court Approved Deductions from Gross Settlement." • There is no Page 12 to the class notice, so the pages should be numbered "X of 11." Plaintiffs are ordered to give notice of this ruling to the LWDA and Defendant.
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5	30-2024-01426948 Olivo vs. ServiceLink Services, LLC	Plaintiffs Kayla Olivo and Aaron Oman’s (collectively, “Plaintiffs”) Motion for Preliminary Approval of Class Action and PAGA Settlement is GRANTED ON THE CONDITION THAT the following correction is made to the class notice before it is sent to the class members and aggrieved employees: Class members and aggrieved employees may object to the settlement amount allocated to PAGA penalties. Thus, on the left column, second row of the table on Page 3 of the class notice, the phrase “Participating Class Members Can Object to the Class Settlement but not the PAGA Settlement” should instead state “Participating Class Members Can Object to the Class Settlement.” Plaintiffs’ counsel states that the summary table was amended to state: “Participating Class Members Can Object to the Class Settlement.” (Supp. Bokhour Dec. ¶ 16, Exs. D-E.) However, that change was not made to the notice. A Final Approval Hearing is set for December 14, 2026 at 1:30 p.m. All papers in support of the Final Approval Hearing, including detailed hourly breakdowns of plaintiffs’ attorneys to support a lodestar cross-check, detailed plaintiffs’ attorney cost breakdowns, an Administrator declaration and invoice, and plaintiffs’ declarations to support the enhancement request, must be filed at least 16 calendar days before the Final Approval Hearing date to provide enough time for court review, and must be served in compliance with CCP notice of motion requirements. Plaintiffs is ordered to give notice of this ruling to the LWDA and Defendant.
6	30-2024-01412038 Pagano vs. Yani Construction Corp	Defendant Arash Firouzi’s (“Firouzi”) Demurrer to Plaintiffs Mauro Pagano and Vita Manzoli’s (collectively, “Plaintiffs”) Second Amended Complaint (“SAC”) is SUSTAINED WITHOUT LEAVE TO AMEND IN PART as to the Second Cause of Action and OVERRULED IN PART as to the Seventh Cause of Action. IT IS ORDERED THAT Firouzi shall file and serve an Answer to the remaining Second Amended Complaint within fourteen (14) days of this ruling. As a threshold matter, Plaintiffs argue that Defendant Firouzi failed to meet and confer in person, by telephone or by video conference as required by CCP § 430.41(a) and instead only sent a meet and confer letter. (Opp. at p. 10.) However, “[a] determination by the court that the meet and confer process was insufficient shall not be grounds to overrule or sustain a